

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: July 27, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

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**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

LINE

2

CATORIA-OLTZ v. GENERAL MOTORS, LLC
CU24-09737

Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

Defendant GENERAL MOTORS, LLC demurs to the cause of action for fraudulent inducement within Plaintiff MARIA CANTORIA-OLTZ's first amended complaint. Defendant simultaneously moves to strike the complaint's prayer for punitive damages. Summarized, the complaint alleges that on May 10, 2021 Plaintiff bought a 2021 GMC Sierra 1500 (the "Vehicle") that came with Defendant's express warranty. The Vehicle manifested defects notably including a defective engine that causes loss of power, stalling, misfires, and engine failure. Defendant has not obeyed its obligations under the Song-Beverly Consumer Warranty Act (the "lemon law") and fraudulently concealed its knowledge of the engine defect while effecting the sale of the Vehicle.

The court has not received opposition to the demurrer or to the motion.

Notice of Tentative Ruling. Defendant's notices of demurrer and motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Defendant is advised to observe local rules going forward.

Statute of Limitations. The statute of limitations for fraudulent inducement is three years. (Code Civ. Proc., § 388, subd. (d).) A demurrer based on the statute of limitations must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCourt* (2001) 91 Cal.App.4th 875, 881.) It is not sufficient that the claim only might be barred. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.) Defendant observes that the Vehicle was purchased on May 10, 2021 yet the original complaint in this action was filed on December 11, 2024. Defendant conflates the date of purchase with the date of discovery of claims. The fact that the defect may have existed at the time of the sale does not mean that Plaintiff was aware of such fact. To the contrary, Plaintiff alleges that Defendant concealed the defect; she did not discover Defendant's wrongful conduct until the Vehicle continued to exhibit symptoms of the defect following Defendant's unsuccessful attempts to repair it; and she had no way of knowing about the defect until it manifested and Defendant could not repair it. (First Amended Complaint at ¶¶ 51, 53, 63.) These allegations are sufficient for pleading purposes to show that the fraudulent concealment cause of action is not barred by the statute of limitations.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Sufficiency of Pleading Fraudulent Inducement. *Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828 (*Dhital*) offers applicable precedent as to the sufficiency of Plaintiff’s fraudulent inducement cause of action. In *Dhital* the plaintiff brought a lemon law action over his Nissan vehicle’s faulty transmission and additionally alleged fraudulent inducement. (*Dhital, supra*, 84 Cal.App.5th at p. 834.) The trial court sustained Nissan’s demurrer on the fraudulent inducement cause of action, deciding that the economic loss rule barred the claim. (*Id.* at p. 835-836.) The appellate court reversed, finding both that the economic loss rule did not bar the claim and that the plaintiff’s allegations sufficiently stated fraudulent inducement (insufficiency of pleading being an alternative ground for affirming the trial court ruling that Nissan urged on appeal). (*Id.* at p. 845.)

Regarding sufficiency of pleading, the *Dhital* court first discussed the basic law. Fraudulent inducement is a subset of fraud and so requires the same elements be proven: (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) justifiable reliance, and (5) damages. (*Dhital, supra*, 84 Cal.App.5th at p. 843; *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294-295.) Fraud must always be pleaded with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.) The *Dhital* plaintiff’s allegations included that Nissan manufactured and distributed more than 500,000 vehicles with faulty transmissions; that Nissan knew or should have known of the faults from premarket testing and consumer complaints to both the National Highway Traffic Safety Administration (“NHTSA”) and to Nissan itself; and that Nissan issued Technical Service Bulletins (“TSBs”) regarding the transmission problem. (*Dhital* at pp. 833-834.) The *Dhital* court found all of this sufficient: the allegations stated that Nissan made lemons with transmission defects, Nissan knew of the transmission defects and the hazards they posed, Nissan had exclusive knowledge of the defects but did not disclose them to consumers, Nissan intended to conceal the information, and the plaintiff would not have bought the vehicle in question had the plaintiff known the information. (*Id.* at p. 844.) Allegations that the plaintiff bought the car from a Nissan dealership with a Nissan-backed warranty and that dealerships are Nissan’s agents for purposes of sale sufficed to state a buyer-seller

relationship between the parties. (*Ibid.*) The court rebuffed Nissan’s argument that the plaintiff was not specific enough about what it should have disclosed where the plaintiff described the effects of the transmission defect and alleged that Nissan knew of these effects from premarket testing and consumer complaints. (*Ibid.*)

Plaintiff’s allegations in the instant complaint almost line up well with those of the *Dhital* plaintiff. Plaintiff here describes the engine defect at issue as likely to cause loss of power, stalling, and engine failure. (First Amended Complaint at ¶ 49.) Plaintiff alleges that Defendant knew or should have known of the transmission defect from pre- and post-production market testing, consumer complaints, and warranty data. (*Id.* at ¶¶ 51, 57.) Plaintiff alleges that Defendant concealed information about the transmission defect that would have changed Plaintiff’s purchase decision had it been known to Plaintiff. (*Id.* at ¶¶ 53, 60-62.)

However, Plaintiff merely alleges obtaining the Vehicle under a warranty with Defendant, failing to offer a basis for finding a transactional relationship between the parties akin to the *Dhital* allegations of purchase from a dealer-agent. (First Amended Complaint at ¶ 6.) Without a transactional relationship Defendant bore no duty to disclose that could support a claim of fraudulent inducement.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Given that Plaintiff’s fraudulent inducement is not sufficiently pled she does not sufficiently plead fraud as a basis for punitive damages. Plaintiff cannot support a prayer for punitive damages on her lemon law causes of action alone. The lemon law provides for punishment of malicious defendants via civil penalties and California law does not support recovery of penal damages twice for the same act of misconduct. (*Troensegaard v. Silvercrest Industries* (1985) 175 Cal.App.3d 218, 228; see also *Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946 [permitting punitive damages on fraudulent inducement claim alongside civil penalties on Song-Beverly claim].)

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party’s pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th

12, 42.) Plaintiff has filed no opposition and thus makes no request for leave to amend nor argument as to how amendment might cure identified defects.

Conclusion. Defendant's demurrer is sustained without leave to amend. Defendant's motion to strike is granted without leave to amend.

9:30 a.m. CALENDAR

LINE

4

**IN RE THE BRANDON RODNEY SPECIAL NEEDS TRUST
FPR043373**

Fifth through Sixteenth Accounts and Report by Trustee; Petition for Settlement of Accounts and Report; for Approval of Trustee's Fees; and for Approval of Attorneys' Fees and Costs Advanced [Probate Code § 17200(6)(6)]

PREGRANT ORDER

The court on its own motion continues this hearing to September 17, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The petitioner shall explain why they have not filed an account since 2014 and why the court should not remove Wells Fargo Bank as the trustee or sanction them for their decades-long failure to file timely accounts.
2. Counsel is reminded that in probate matters, the "title of each pleading and of each proposed order must clearly and completely identify the nature of the relief sought or granted." (Cal. Rules of Court, rule 7.102.) Here, the caption did not mention the requested termination of the special needs trust.
3. The special needs trust in Section 1.8 requires, upon termination of the trust, that notice be given to the state agencies, including the Department of Health Care Services. The Proof of Service does not show that notice was given to any of the required state agencies.
4. The requested attorney fees and costs exceed the remaining balance of the trust. The petitioner shall explain how the fees will be paid.
5. The Verification is not signed by the representative of Wells Fargo Bank.

LINE

5

**IN THE MATTER OF THE JESSICA CORRAL SPECIAL NEEDS TRUST
FPR047413**

Petition for Approval of Seventh Account Current of Trustee for the Period of May 1, 2024 to April 30, 2026; Approval of Trustee's Fees; Approval of Attorney's Fees; Declaration of Ian M. Sharon

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

LINE

6

**IN THE MATTER OF THE BRIA JONNISON SPECIAL NEEDS TRUST
FPR047510**

Petition for Approval of Sixth Account Current of Trustee for the Period of March 1, 2024 to February 28, 2026; Approval of Trustee's Fees; Approval of Attorney's Fees; Petition for Authorization to Purchase Vehicle Which Will Be Used to Transport the Beneficiary and Which Will Accommodate Her Special Needs; Declaration of Ian M. Sharon

PREGRANT ORDER

The court on its own motion continues this hearing to September 17, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

Schedule C (Disbursements): There are disbursements to Lori Thomas, the beneficiary's mother, for caregiving services in December 2025, January 2026, and February 2026. The beneficiary and her siblings were placed by the Juvenile Court with the maternal grandparents in either November or December 2025. The petitioner shall explain whether they will attempt to recoup those payments since the mother was not providing caregiving services after December 2025.

LINE

7

**IN RE THE ESTATE OF PHILLIP LESUEUR, DECEASED
FPR051691**

Report of Administrator on Waiver of Final Account; Petition for Allowance of Statutory Compensation to Administrator and Attorneys, for Allowance of Extraordinary Compensation to Attorneys, for Reimbursement of Costs to Attorneys and for Final Distribution

PREGRANT ORDER

The court on its own motion continues this hearing to August 6, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

The petition requests that the settlement agreement be filed under confidential seal; however, it is unclear why it is necessary to file the settlement agreement under confidential seal. The petitioner shall address whether any of the provisions of Evidence Code section 1123 apply to the agreement.

LINE

8

**IN RE THE ESTATE OF PATRICK JOHN CONNELLY, DECEASED
PR24-00397**

Review/Compliance Hearing re: Status of Filing a Petition for Final Distribution

Report of Status of Administration and Request For Extension of Time to Administer Estate

PREGRANT ORDER

The Court continued this matter from April 30, 2026 to allow the administrator to give notice to Connie Sweet. The court has reviewed the Notice of Hearing with Proof of Service which shows that copies of the supplemental information were provided to all of the heirs.

Counsel and Administrator Jeannine Moline may appear via Zoom, in person, or by CourtCall. The court will grant a continuance of the administration, but counsel should seek the information they are requesting from the administrator of the related case.

LINE

9

**IN RE THE ESTATE OF LORRAINE H. MCCAUSLAND, DECEASED
PR24-00508**

First and Final Report of Executor on Waiver of Account; Petition for its Settlement, for Allowance of Statutory Compensation to Executor and Attorney, for Reimbursement of Costs to Attorney, for Reserve for Future Tax Expenses, and for Final Distribution

PREGRANT ORDER

The court on its own motion continues this hearing to September 17, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The petitioner did not obtain Letters for 12 months after her appointment on October 9, 2024. The petitioner shall explain her delay.

2. The petitioner was appointed October 9, 2024, but failed to obtain her Letters for a year. Her petition for final distribution would have been due December 19, 2025 if she had obtained her letters timely. The petitioner shall explain her failure to file timely.

3. The petitioner requests that the estate be distributed to the heirs, but the decedent's will which was admitted to probate directed that her estate be distributed to her trust. The petitioner shall explain why the court should disregard the decedent's clear intentions.

LINE

10

IN RE THE ESTATE OF RI'CHARD L. DU BOIS, DECEASED
PR26-00290

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (filed by Richard Pinckney)

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act (filed by Rodney Dubois)

PREGRANT ORDER

This matter was continued from June 29, 2026 to allow the competing petitions to be heard concurrently. The court has reviewed the Proof of Service filed by Rodney Dubois which resolved the outstanding issue with his petition.

The court on its own motion continues this hearing to September 24, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the parties shall resolve the following issues with their respective pleadings:

As to the Petition filed by Richard Pinckney:

1. The petition states that the petitioner is the father of the decedent. The petitioner shall provide either a copy of the decedent's birth certificate or a court order establishing his parentage of the decedent.

2. The decedent's will nominated his brother as the executor and named him as the sole heir. The petitioner shall explain why the court should disregard the decedent's expressed wishes.

As to the Petition filed by Rodney Dubois:

All issues resolved.

LINE

11

IN RE THE ESTATE OF TRAVIS A. GATUS, DECEASED
PR26-00370

Spousal Property Petition

PREGRANT ORDER

The court finds that all notices have been given as required by law. The Spousal Property Petition is granted as prayed. Counsel to submit a conforming order.

LINE

12

IN RE THE ESTATE OF JILL ANN HARRIS, DECEASED
PR26-00372

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to October 1, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.
2. There is no proof of publication on file. (Prob. Code § 8124.)
3. Petition, item 3.c: The decedent's address must be provided (Probate Code § 8002(a)(2).
4. Petition, item 3.e: There are no Waivers of Bond by Heir or Beneficiary (mandatory Judicial Council form DE-111(A-3e)) signed by either of the heirs. Absent waivers of bond from all heirs, bond will be required.

LINE

13

IN RE THE COMPROMISE OF EJOHN MCGREGOR, A MINOR
PR26-00383

Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

PREGRANT ORDER

Petitioner to appear. Remote appearances are approved.

**IN RE THE ESTATE OF STEPHEN K. STONEWELL, DECEASED
PR26-00385**

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to September 23, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The petition proposes to admit the decedent's April 1, 2026 will to probate. However, the terms of the will devise the entire estate to the Stephen K. Stonewell Trust. The petitioner must file a copy of the trust, with all amendments, disclaimers and corrections, with the court under confidential cover. (Solano County Local Rules, Rule 7.51(c).)
 2. Petition, item 8: Per the instructions on page three of the petition for Item 8, the petitioner is required to list everyone named in the decedent's will. Jessica Tingley is named as an alternate executor and must be listed and given notice of this proceeding.
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